

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
FAUSTO CANDA BANEGAS,

Plaintiff

- against -

CITY OF NEW YORK,
POLICE OFFICER JOHAN JAIME (shield # 30734),
POLICE OFFICER JOHN DOE,

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiff's attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

Dated: July 29, 2024
Bronx, NY

Yours, etc.,



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

Index No.

Purchased 7-29-24

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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FAUSTO CANDA BANEGAS,

Plaintiff,

Index No. _____

Verified Complaint

- against -

CITY OF NEW YORK,
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Defendants.

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Plaintiff FAUSTO CANDA BANEGAS , by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff resided in the State of New York.
2. That at all times hereinafter mentioned, POLICE OFFICER JOHAN JAIME (shield # 30734) (hereinafter referred to as "P.O. JAIME") was employed by the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD").
3. That at all times hereinafter mentioned, P.O. JOHN DOE (hereinafter referred to as "P.O. DOE") was employed by the NYPD.
4. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK (hereinafter referred to as "CITY"), is a municipal corporation organized and existing under the laws of the

State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, the NYPD is an agency created and maintained by the above municipal government.

PROCEDURAL POSTURE

6. On September 26, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

7. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

8. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

STATEMENT OF FACTS

9. On or about June 23, 2023, at approximately 7:00 p.m., in the vicinity of 737 Melrose Avenue in Bronx County, members of the NYPD, including P.O. JAIME and P.O. DOE, approached Plaintiff and handcuffed Plaintiff.

10. Next, Plaintiff was taken to a police precinct and forced to remain inside of a holding cell.

11. Thereafter, Plaintiff was taken to Bronx County Central Booking, where Plaintiff was searched and forced to remain inside various holding cells.

12. On or about June 24, 2023, Plaintiff was arraigned in Bronx County Criminal Court and a criminal action against Plaintiff commenced. Plaintiff was charged with Aggravated Unlicensed

Operation of a Motor Vehicle and related charges under docket number CR-013732-23BX.

13. Plaintiff was released from custody on or about June 24, 2023.

14. Plaintiff had to defend against false charges until all charges were dismissed and sealed on September 26, 2023.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

15. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

16. In arresting Plaintiff, the Defendants acted with malice.

17. NYPD lacked probable cause to arrest Plaintiff.

18. Defendant P.O. JAIME signed a Criminal Complaint knowing the information contained therein to be false, misleading and incomplete.

19. Defendants, including P.O. JAIME, provided false and misleading information to the Bronx County District Attorney's Office regarding Plaintiff's conduct immediately prior to and during Plaintiff's arrest.

20. The matter was terminated in Plaintiff's favor when all charges were dismissed and sealed on September 26, 2023.

21. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: SECTION 1983 FOR FALSE ARREST/IMPRISONMENT
AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES
CONSTITUTIONAL RIGHTS

22. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

23. Plaintiff sues all Defendants in their capacities.

24. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution were all carried out without a warrant or probable cause.

25. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

26. Prior to June 23, 2023, CITY and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

27. It was the policy and/or custom of the NYPD and CITY to ignore exculpatory evidence before, during and after an arrest is made. Herein, prior to arresting Plaintiff, the NYPD and CITY had direct evidence of Plaintiff's innocence, including Plaintiff's DMV Driving Abstract that established that Plaintiff's license was not suspended or revoked. Despite this fact, P.O. JAIME and P.O. DOE proceeded with the arrest processing and prosecution of Plaintiff.

28. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

29. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: July 29, 2024
Bronx, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

TO:

MURIEL GOODE-TRUFANT
New York City Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JOHAN JAIME (shield # 30734),

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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FAUSTO CANDA BANEGAS,

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Plaintiff

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Defendants.

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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
July 29, 2024



ELLIOT S. KAY